

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 8, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Shanor and Dr. Rinne, agenda item #19 was removed from the Consent Agenda. Ms. Williams moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 24, 2014. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Shanor. Upon inquiry, Lois Huff, City Treasurer, provided information regarding vouchers payable to: Lincoln Financial Groups (payroll deduction payments for employees who have purchased life insurance); Employers Council Services, Inc. (services for investigating certain personnel issues); Evergreen Lawn and Tree Care, Inc. (tree removal/pruning assistance for a qualifying individual under the Community Development Block Grant HOME program), and Paddle Wheeler (purchase of paddle boats (Lions Park) involving Laramie County Recreation Board grant funds). Motion carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in the S½ of Lot 4, Williams Subdivision, Laramie County, Wyoming (located at 812 Storey Boulevard). Josh Tetzlaff, Planning and Development office, advised the proposed annexation is pursuant to a petition requesting annexation submitted by the property owner; briefly reviewed the area to be annexed, and stated that requirements and compliance of annexation conditions contained in state statutes had been met. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Mayor Kaysen opened a public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in a portion of Tracts 1 & 7 and all of Tracts 26 & 27, Dell Range Addition; Lots 1 & 2 of Smithson View, Laramie

County, Wyoming (located between Ridge Road and College Drive along Thomas Road). Josh Tetzlaff, Planning and Development office, advised the proposed annexation is pursuant to a petition requesting annexation submitted by the property owners; briefly reviewed the area to be annexed, and stated that requirements and compliance of annexation conditions contained in state statutes had been met. Mr. Tetzlaff noted a zone change and platting actions are in process. Kay McAdams questioned whether Lot 5, Block 8 would be included in the area to be annexed and applicability of a proposed zone change to AR (Agricultural Residential) for the lot. Mr. Tetzlaff verified the lot was included in the proposed annexation area and Jim Flesher, Planning and Development office, confirmed an AR zone is a City zone classification. Mayor Kaysen advised agenda item no. 16 pertains to the zone change proposed for the property. D. J. Perrott Macneil commented generally in opposition to annexations and zone changes involving privately leased lands and submitted a handout (on file with City Clerk's office) in conjunction with his statements. Mr. Brown raised a point of order that Mr. Macneil's comments were not specific to the property involving the public hearing with Mayor Kaysen requesting Mr. Macneil to summarize his comments as related to the topic on the floor. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Mayor Kaysen opened a public meeting for the purpose of receiving public comment on the submission of a 5307 Federal Grant to fund transportation services by Cheyenne Transit for Fiscal Year 2015. Joe Dougherty, Transit Director, provided information regarding the grant submission requesting \$1,542,855 in Federal assistance for capital equipment, maintenance and operating expenses, and funds received from other sources for a gross project total of \$2,554,151. In addition, Mr. Dougherty briefly reviewed transit services provided throughout the past year and, upon inquiry, advised of anticipated FY2016 budget funding requests for new buses and capital expenditures, indicating the program is subsidized by the general fund in the approximate amount of \$400,000-\$500,000. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

ORDINANCE - Pursuant to Section, 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from AG Agricultural to HI Heavy Industrial for Lot 1 & Lot 2, Block 1 of Plains Industrial Park, 2nd Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Campstool Road and HR Ranch Road). Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading with the condition that information relating to DEQ transportation regulations and industry standards be submitted to members of the governing body by the developer prior to the December 8, 2014 meeting of the governing body, seconded by Mr. Luna. It was noted that since the Committee meeting, the condition had been met by the developer. Motion carried. Voting "yes" -- all members of the governing body with the exception of Ms. Williams voting "no". (#4047)

ORDINANCE - Amending Section 10.32.030, Decreasing State Speed Limits in Certain Zones, and amending the attached Schedule A-2, of Chapter 10.32, Speed Limits, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Ernie Valdez expressed concerns with the speed limits around Goins Elementary school, stating his belief that the limits need to be reduced and flashing lights should be installed around the school for safety purposes. Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Upon inquiry, Rob Geringer, City Engineer, reviewed language contained in the existing ordinance and Schedule A-2 that includes wording indicating the 25 mph speed limit is effective in areas when properly sign-posted, and explained that since that ordinance change was approved (2004) an issue was raised regarding signage and where it had to be posted. He stated by striking out the wording, pursuant to the proposed ordinance, signage could be posted in the same locations as the handheld cellphone

ordinance notification signs (i.e. entry streets into the City) indicating the speed limit on local streets is 25 mph unless otherwise posted. He explained this would assist with enforcement efforts, which is the overall intent of the proposed amendment. Upon inquiry, Mr. Geringer and Captain Mitch Maxwell, Police Department, described public education efforts and related officer enforcement plan that will be made to advise the public of the City-wide change if the ordinance is approved. Mr. Geringer, in response to inquiry, also provided information generally on the street map adopted by the City relative to residential vs. collector and/or arterial streets. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of the NW1/4 of Section 21, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as The Bluffs, 10th Filing Annexation (located between Converse Avenue and Crestridge Drive, north of Foothills Road). Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Amending Chapter 13.12, Sewer System, of Title 13, Public Services, of the Code of the City of Cheyenne, Wyoming, by revising Section 13.12.030, Deposit of Excrement, Garbage or Objectionable Waste Prohibited, and adding Section 13.12.195, Unauthorized and Prohibited Discharges. Clint Bassett, Board of Public Utilities, briefly reviewed the intent of the ordinance, which is to inform customers of items that cause obstructions, damages and sewer backups if discharged into the sewer system. He noted the ordinance will also protect employees and water treatment processes. Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Upon inquiry, Mr. Bassett stated applicable sections in the ordinance will assist in identifying violators, and that customers will be informed of the items that may damage the system. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, the S1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located at 812 Storey Boulevard) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from Conditional MUB Mixed-Use Business (Ordinances #3891 & #3919) to MUR Mixed-Use Residential for Lots 1, 2, and the north 66 feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of East 23rd Street and Russell Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from HR High Density Residential (County) to HR-2 High Density Residential-Developing for a replat of portions of Tracts 245, 246, 247, and 248, and a portion of the vacated east half of Arthur Road, Sunnyside Addition, 6th Filing, Cheyenne, Wyoming, to be known as Carter Cottages (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of Tracts 1 and 7 and all of Tracts 26 and 27, Dell Range Addition; Lots 1 and 2, Smithson View, Laramie County, Wyoming, to be known as Thomas Heights Annexation (located between Ridge Road and College Drive along Thomas Road) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from A-1 (County), Agricultural and Rural Residential, to AR, Agricultural Residential, for Lot 5, Block 8, Thomas Heights, and from A-1 (County), Agricultural and Rural Residential, and AR (County) Agricultural Residential, to MR-2, Medium-Density Residential-Developing, for the remainder of Thomas Heights, Cheyenne, Wyoming (located between Ridge Road and College Drive along Thomas Road) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

After the next agenda item title was read into the record, Mayor Kaysen explained, for benefit of the public in attendance, the above ordinances introduced on first reading were referral items to the Public Services Committee and the Committee would meet to discuss them at its next meeting on December 16, 2014 at Noon in Room 122.

RESOLUTION - An exception to the "201 Agreement" to allow a septic permit for a small wastewater treatment system for a residential property for the south 1/2 of Tracts 105 & 106, Sunnyside Addition, 4th Filing, Cheyenne, Wyoming (located at the northeast corner of the intersection of Monroe Avenue and Charles Street). Cooper Overstreet, The Kuker Group, representing the property owners, reviewed the history of the property that had been annexed into the City based upon the owners' belief that City water and sewer services were available near the property. Subsequently, he advised, it was discovered that sewer and water lines were not in the vicinity, therefore, the owners submitted an application for a septic permit as an exception to the "201 Agreement" to allow for any needed repairs to their system. He stated the Health Department denied the permit and if the governing body does not approve the exception, the property owners will pursue de-annexation of the property. Roy Kroeger, City/County Environmental Health office, provided information and reviewed reasons for denial of the permit request. Mr. Shanor reported there was no recommendation on the item from Public Services Committee. Mr. Shanor moved to adopt, seconded by Mr. Allen. Discussion followed on the "201 Agreement", which does not allow the City to grant an exception for properties within the City; circumstances involving the subject property, and possibility of de-annexing the property. Motion failed. Voting "no" -- all members of the governing body.

[CA] RESOLUTION - Authorizing the City of Cheyenne, Wyoming, to lease, with an option to purchase, sanitation, recycling, and landfill equipment (Solid Waste Fund). Motion (per Consent Agenda) carried. (#5631)

RESOLUTION - Authorizing the Mayor and City Clerk to sell a tract of land owned by the City of Cheyenne, located at 206 West Lincolnway, Cheyenne, Wyoming, and having an appraised value of seventy thousand dollars (\$70,000.00), to the Children's Museum of Cheyenne, a Wyoming Corporation, subject to the payment of the purchase price of one hundred dollars (\$100.00), and subject to the terms and conditions of the Project Development and Administration Agreement entered into by the City of Cheyenne and the Children's Museum of Cheyenne dated October 6, 2014 (City Contract # 6242). Amy Surdam, Board President, Children's Museum, explained the mission of the Children's Museum and its project involving the building of a learning and educational children's museum, and its relationship with downtown redevelopment. She noted the importance of acquiring the property to move forward with the project and fund-raising and grant opportunities; advised of the status of conceptual and schematic building designs, and commented on communications involving the Hynds Building as an adjacent property. Jim Weaver, #1 Properties, speaking on behalf of the owner (Outback Investments, LLC) of the Hynds Building, commented in support of the Children's Museum project generally but requested a two week postponement of the agenda item to allow further discussions between the Children's Museum and Hynds Building

owner regarding a possible memorandum of understanding relative to joint utilization of corridor space which would be of benefit to both owners. Ms. Surdam spoke in opposition to postponement due to its effect on the Museum's ability to apply for a National Endowment for the Arts grant by the grant deadline, and other pending grant and donation opportunities based upon ownership of the property. Pat Crank, attorney representing the Children's Museum, referenced and commented on a recent letter that had been issued by the owner of the Hynds Building indicating interest in acquiring the City's property for the appraised value; reviewed past communication efforts the Museum has made with the owner of the Hynds Building; advised they are willing to sit down with Outback Investments to work on issues, and spoke in opposition to postponing action on the resolution. Mr. Weaver provided reasons for Outback's offer to purchase the property, and the necessity for an agreement with whomever may own the 22 ft. of property. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Shanor moved to amend by adding the following "Whereas" clause to the resolution, seconded by Mr. Allen: "Whereas, this body explicitly finds that the sale of the specified land at less than appraised value will promote economic development in Cheyenne in a variety of ways." Tom Johnson, Wyoming Business Council, advised the Museum's proposed building project is consistent with similar types of economic development projects and that a study and analysis had been done relative to direct and indirect economic development benefits. He stated the Business Council would consider a grant request from the Museum with or without "Hynds involvement", and noted that the Attorney General has provided [legal] guidance on similar past projects. In response to query by Mr. Weaver, Mr. Johnson advised the economic study did not include the Hynds building. Discussion on the proposed amendment followed with Mr. Weaver providing information in response to questions involving current use of a portion of the Hynds building, plans for redevelopment of the building, and relationship of a joint corridor between the Hynds and future Museum building. Motion to amend carried. Voting "yes" -- all members of the governing body. Discussion on the main motion, as amended, included the following topics: Wording contained in City Contract #6242 regarding an Attorney General's opinion; Hynds building owner concerns; National Endowment for the Arts grant deadline, Children's Museum project as a downtown asset, and grant involvement by the City. During discussion and upon inquiry, Mr. Crank stated his interpretation of City Contract wording regarding an Attorney General's opinion, and related state laws; Mr. Weaver expressed that if the property ownership is transferred and the City is no longer involved there is a concern that the incentive in reaching an agreement (re: joint corridor) will be lessened, and Ms. Surdam provided information on the Arts grant deadline. Main motion, as amended, carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown voting "no". (#5632)

[CA] RESOLUTION - Acknowledging the initiation and development of the Cheyenne Historic Façade Improvement Program for Downtown Cheyenne. Motion (per Consent Agenda) carried. (#5633)

[CA] RESOLUTION - Acknowledging receipt of the Cheyenne Cemetery Arboretum Master Plan Report and Appendices, dated September 15, 2014, prepared by Robert Peccia and Associates. Motion (per Consent Agenda) carried. (#5634)

RESOLUTION - Establishing guidelines for the maximum amount of excess revenue that may be collected for the operation of Cheyenne's Solid Waste Fund. Boyd Wiggam, Wyoming Liberty Group, stated the resolution poses a philosophical decision on the issue of whether to continue to rely on sanitation fees to fund other City operations, noting limited revenue sources for the City and elements of an enterprise fund. Ed Strader and Ed Melko commented in support of the resolution, noting funding needs for the landfill and the need for the City to find other revenue sources or reduce expenditures. Mr. Melko's comments included reference to the use of a portion of sanitation set-aside funds to purchase the Belvoir Ranch potentially to utilize as a new landfill site,

and suggesting the ranch, or portion thereof, be sold to raise funds. Donald James Perrott Macneil expressed his belief that the City does not own the Belvoir Ranch. During Mr. Macneil's comments, Mr. Brown raised a point of order that comments were not applicable to the resolution topic with Mayor Kaysen advising Mr. Macneil that his statements needed to stay on subject. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Shanor moved to adopt, seconded by Mr. Allen. Comment followed on the results of the recent sanitation study and affiliated projected fee increases; amount of funds transferred to the general fund, and purpose of the resolution. Ms. Broyles moved to amend the 5th line of the last paragraph of the resolution that begins with "Now, Therefore, Be It Resolved" by striking "five percent (5%)" and replacing it with "nine percent (9%)", and stated the rest of the paragraph would remain unchanged and if a second to her motion is received she would like to explain the reasoning for the amendment. Mr. Shanor seconded the motion to amend. Ms. Broyles explained her reasons for proposing the amendment. Mr. Strader spoke in opposition to the amendment, and Mr. Melko questioned the impact on sanitation rate increases based upon the proposed amendment. Discussion included the following topics: Retaining money in the sanitation fund; keeping sanitation rate increases at minimal amounts; future effect of the percentage change proposed in the amendment, and whether the general fund will be jeopardized. Upon inquiry, Mayor Kaysen advised it was hard to determine the impact on the general fund as the next fiscal year budget has not yet been prepared or submitted to the governing body. Motion to amend carried. Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams. Voting "no" -- Dr. Rinne, Mr. Valdez and Mayor Kaysen. Discussion on the main motion, as amended, included the following topics: Justifying rate increases; future effect of the resolution; City operations and services that do not generate revenue and resolution effect on various departments and operations; potential future changes to the resolution if needed; concern with limiting the amount of funds that can be transferred; interpretation of wording in the "Now, Therefore, Be It Resolved" clause of the resolution, as amended; binding future City Council members with provisions of the resolution; boom and bust revenue cycles; potentially cutting non-essential services to make up the funding difference to the general fund; implementing parameters for the administration prior to preparation of the next budget, and use of sanitation fees for the general fund. Upon inquiry, Mayor Kaysen indicated, to the best of his knowledge, the practice of using sanitation fees to meet obligations for City-wide services has been in place for decades, and that utilization of fees for that purpose is not an uncommon practice by other cities. Main motion, as amended, carried. Voting "yes" -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting "no" -- Mr. Brown, Dr. Rinne and Mayor Kaysen. (#5635)

[CA] RESOLUTION - Authorizing the filing of an application with the Federal Transit Administration, an Operating Administration of the United States Department of Transportation, for Federal Transportation Assistance authorized by Title 49, United States Code, Section 5307 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government grant agreement for attendance at the 2015 Saving Places Conference -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Designating local banks as depositories for municipal funds -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has approved an application to be submitted by the Board of County Commissioners of Laramie County, Wyoming, to the State Loan and Investment Board for 2015 - 2016 Countywide Consensus Block Grant Funding for the replacement of the roof of the Laramie County Historic Courthouse -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has approved an application to be submitted on behalf of the Town of Pine Bluffs to the State Loan and Investment Board for 2013 - 2014 Countywide Consensus Block Grant Funding for the Pine Bluffs Veterans Memorial Project -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor to issue a letter setting forth the City's informal commitments regarding a housing assessment to be conducted by the Wyoming Rural Development Council in conjunction with the United States Department of Housing and Urban Development -- referred to Public Services Committee (sponsor -- Mr. Shanor).

Professional Services Agreement between the City of Cheyenne and Assured Equity Management Corporation for health insurance consulting services (Contingency Funds and Unrestricted Reserves). Josh Feinman, Vice-President, Assured Equity Management Corporation, provided a detailed review of the various types of services that would be provided under the agreement in response to the RFP (Request For Proposals) the City had issued, and noted information on examples of similar services provided by Assured Equity for other clients, as requested, had been submitted. Mr. Brown reported there was no recommendation on the item from Finance Committee. Ms. Broyles moved to approve, seconded by Mr. Valdez. Discussion topics included: whether in-house staff could provide the services; concern with the cost of services to be provided under the one-year agreement; agreement term; health plan changes related to the Affordable Care Act; potentially revising the RFP to "downsize" services requested to reduce the City's cost, and other RFP responses received. During discussion and upon inquiry, Rich Wiederspahn, Human Resources Director, clarified the agreement is for professional services and is not a study; explained in-house City staff are not medical insurance experts, noting other large organizations have consultant assistance for these areas, and provided information on the RFP process that was utilized. He reviewed RFP proposals received, interviews conducted and recommendation of Assured Equity by members of the review committee, whose recommendation was based upon the belief that Assured Equity could meet all elements of the RFP and was not based upon the price proposed for services. Motion to approve failed (due to a tie vote). Voting "yes" -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Valdez and Mayor Kaysen. Voting "no" -- Mr. Brown, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams.

[CA] Contract Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide Community Counseling and Intervention Services. Motion (per Consent Agenda) carried. (#6266)

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for epoxy striping (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (in the amount of \$104,194.00). (#6267)

Contract Agreement between the City of Cheyenne, Parks and Recreation Department, and Public Restroom Company, Minden, Nevada for the provision and installation of a restroom facility for Romero Park (Community Development Block Grant Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$157,709.00). (#6268)

[CA] Contract between the City of Cheyenne, Youth Alternatives; Laramie County Community Juvenile Services Joint Powers Board, and Laramie County, Wyoming, for the provision of screening, counseling and supportive services to youth referred to the Juvenile Services Center Crisis Shelter -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 6041 between the City of Cheyenne, Parks and Recreation Department, and AP Wyoming, LLC, for an Owner and Construction Manager At Risk (CMAR) Guaranteed Maximum Price Agreement for unanticipated scope of services changes for the Municipal Pool Renovation and Expansion Project (1% Sales & Use Tax Overage funds, Menard property sale proceeds). Motion (per Consent Agenda) carried (in an amount not to exceed \$68,003.00). (#6041)

[CA] Contract Modification No. 1 to Contract No. 6162 between the City of Cheyenne, Information Technology Division, and CenturyLink, Casper, Wyoming, for additional connections to the Enterprise Metropolitan Ethernet Wide Area Network System in conjunction with the new telephone system. Motion (per Consent Agenda) carried (in an amount not to exceed \$43,440.00). (#6162)

[CA] Contract Modification No. 2 to Contract No. 6151 between the City of Cheyenne, Engineering Department, and Short Elliott Hendrickson, Inc., for the 19th Street Rehabilitation Project (2011 - 2014 1% Sales Tax, BOPU Funds) -- referred to Finance Committee.

[CA] Authorization to purchase traffic striping paint and beads under Wyoming Department of Transportation Bid #14-335AA and #14-336AA (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-7-15 for a contract between the City of Cheyenne, Parks and Recreation Department, and Kolbe Striping, Inc., Castle Rock, Colorado, for the On-Street Bicycle Striping and Signage Project (1% Specific Purpose Sales & Use Tax, Misc. Grant Funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-9-15 for a contract between the City of Cheyenne, Forestry Division, and Western Tree Care, Inc., Cheyenne, Wyoming, for the City of Cheyenne Cemetery Complex Tree Removal project -- referred to Finance Committee.

[CA] Consideration of Bid #M-10-15 for a contract between the City of Cheyenne, Landfill Division, and J-2 Contracting Company, Greeley, Colorado, for crushing concrete at the Happy Jack Landfill (Solid Waste Management) -- referred to Finance Committee.

Re-Appointment of Kevin Paintner to the Cheyenne Regional Airport Board. Mr. Shanor moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointee).

[CA] Consideration to purchase nine Motorola radios for new police vehicles for the Cheyenne Police Department from Absolute Solutions, Cheyenne, Wyoming (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$35,662.50).

Announcement was made of the Re-Appointments of Paul M. Frauendienst to the Building Code Board of Appeals, Mark C. Hardee to the Fire Civil Service Commission, and Tony Adams to the Personnel Commission, to be confirmed December 22, 2014.

Under other business, Andy Austin expressed concerns regarding the fee assessed to residents for parking permits associated with the recently approved Residential Critical Traffic and Parking Area in the vicinity of the Cheyenne Regional Medical Center. He expressed appreciation for the City taking action to designate the area but noted his frustration with having to pay for a permit(s) and suggested at least one permit be allowed at no charge. Brief discussion followed on permit fee requirements per the Critical Traffic and Parking Area ordinance, and possible modification to the ordinance and potential effect on other Critical Traffic and Parking Areas that have been approved in the past relative to annual parking permits. During discussion Carol Intlekofer, City Clerk, confirmed that agenda documentation submitted with the application for governing body consideration to establish the area included a copy of the Critical Traffic and Parking Area ordinance (i.e. City Code) and that the application form requesting the area contains a requirement that the applicant must notify affected residents of the parking permit requirement.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:29 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 19, 2014